

26PR00874 Estate of Jack Henry Witt

County: sonoma

Division: Probate

Hearing date: 2026-09-11

Motion: Probate of Will

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Estate of Jack Henry Witt

26PR00874

Probate of Will

Tentative Ruling: NO APPEARANCES REQUIRED. The Court has received and reviewed the declaration of counsel filed August 28, 2026. The Court treats the declaration as a supplement to the petition. CRC Rule 7.3(5). However, such a supplement "...must be signed and verified by one of the persons who were required to sign and verify the pleading that is supplemented." CRC Rule 7.104(b)(1). As to item 3.a the Court does not find that the exception in that section applies as there is no basis to conclude the attorney has personal knowledge of the fact stated. (Evidence Code section 702). If counsel can obtain Petitioner's signature on a supplement prior to the hearing, or file a death certificate, they should request to appear for the purpose of presenting it to the Court. The Court is then inclined to grant the petition. Otherwise, this matter is CONTINUED to October 16, 2026 at 9:30 a.m. in Department 63 to allow Petitioner time to cure the defect.